

TAYLOR, et al v RITCHIE

25CV47902

PLAINTIFF'S MOTION TO DEEM REQUESTS ADMITTED AND FOR DISCOVERY SANCTIONS

This case involves a property dispute between Plaintiffs Kelly and Matthew Taylor ("Plaintiffs") and Lavina Richie ("Defendant.") Now before the Court is Plaintiff's Motion to Deem Requests for Admissions, Set Two Admitted.

Defendant has not filed an opposition.

On June 18, 2026, Plaintiffs served, by mail, "Plaintiff Kelley Taylor's Request for Admissions to Defendant Lavina Ritchie, Set Two 2" ("RFA2") on Defendant. (Declaration of Justin P. Swierczek ("Swierczek Decl.") ¶ 3, Ex. 1.) Defendant never responded nor communicated with Plaintiffs' counsel about the RFAs. (*Id.* ¶¶ 4, 5.)

Pursuant to Code Civ. Proc. section 2033.280, if a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).)

A party moving to compel initial responses under this section is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Plaintiffs served Defendant with RFAs on June 18, 2026. Defendant has not responded to the RFAs and has not filed any opposition to this motion. This is Defendant's second time failing to respond to RFAs (See Court Order May 15, 2026.)

Pursuant to Code Civil Procedure section 2033.280(c), the Court must impose a monetary sanction on Defendant for failing to timely respond to the RFAs. Plaintiffs' counsel avers that he spent 1 hour preparing the motion at a rate of \$275.00 per hour and anticipates spending additional time on an opposition and attending the hearing. As no opposition was filed, the Court concludes that Plaintiffs' counsel's time expended is two hours (one for motion, one for hearing). Thus, sanctions are warranted in the amount of \$610.00 (Two hours attorney's fees plus filing fee).

Accordingly, the Court **GRANTS Plaintiffs' motion to deem the facts as admitted as truth.** The Court further orders Defendant to pay **sanctions** to Plaintiffs in the amount of **\$610.00 to be paid within fourteen (14) days of this Order.**

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted (proposed) Order.